

## **Guardian of the Person Summary of Responsibilities**

### **Initially you must:**

- Review the Guardianship of the Person Training materials (written guide\* and video) as soon as possible.
- Review the Guardianship Forms materials (written guide\* and video).
- Appear for the guardianship hearing, if required.

### **As soon as possible after the Judgment is entered, you must:**

- Qualify before the County Surrogate. You CANNOT act as guardian until you qualify.
- Obtain Letters of Guardianship and, if needed, Short Certificates.
  - In most cases, fees must be paid to the Surrogate for Letters and/or Short Certificates.

### **After qualifying as guardian of the person, you must:**

- Advocate for the independence of the incapacitated person.
- Discuss decisions with the protected person, and consider their input and preferences.
- If the incapacitated person's preferences are unknown or potentially harmful, make decisions based on what you believe is in their best interest.
- Arrange services for the incapacitated person's health, education, and welfare.
- Make medical decisions for the protected person, considering the following:
  - conditions that make treatment necessary;
  - incapacitated person's preference;
  - risks and benefits of all alternatives;
  - time considerations for taking action;
  - less restrictive alternatives; and
  - additional opinions, if helpful.
- Visit with the incapacitated person frequently - at least once every three months unless otherwise ordered by the court.
- Provide for appropriate activities and social opportunities for the protected person.
- File periodic reports as to the well-being of the incapacitated person, if required.
- Inform the Surrogate of any major changes in the health or welfare of the protected person.
- Notify the Surrogate of any changes to your address, or to the address of the incapacitated person.
- Inform the Surrogate upon the death of the incapacitated person.

### **You must NOT:**

- Take payment for your services, unless authorized in the Judgment.
- Entrust your guardianship duties to anyone else, unless authorized by statute.

\*At this time the written guide is available in English only